

Polk County Case Number 2007CF000317 State of Wisconsin vs. Brenda K. Baillargeon

Case summary

Filing date 11-15-2007	Case type Criminal	Case status Closed	
Defendant date of birth 04-22-1968	Address 457 Meadow Lane, Somerset, WI 54025	Branch ID 2	DA case number 2007PL001677

Charges

Responsible official Anderson, Jeffery L.	Prosecuting agency District Attorney	Prosecuting agency attorney Steffen, Daniel Patrick	Printable version
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Defendant owes the court: \$0.00

Count no.	Statute	Description	Severity	Disposition
1	948.095(2)	Sex Assault of Student by School Staff	Felony H	Guilty Due to No Contest Plea
2	948.095(2)	Sex Assault of Student by School Staff	Felony H	Charge Dismissed but Read In
3	948.095(2)	Sex Assault of Student by School Staff	Felony H	Charge Dismissed but Read In
4	948.07(1)	Child Enticement-Sexual Contact	Felony D	Guilty Due to No Contest Plea
5	948.07(1)	Child Enticement-Sexual Contact	Felony D	Charge Dismissed but Read In

The Defendant was charged with the following offense:

Count	Statute cite	Description	Severity	Offense date	Plea
1	948.095(2)	Sex Assault of Student by School Staff	Felony H	05-19-2007	No Contest on 03-28-2008

On 03-28-2008 there was a finding of:

Action	Court official	Notes
Guilty Due to No Contest Plea	GaleWyrick, Molly E	

On 07-10-2008 the following was ordered:

Sentence	Time	Begin date	Notes
State Prison - Imposed and Stayed	2 Years		Not eligible for the Challenge Incarceration Program. Not eligible for the Earned Release Program.

Sentence	Time	Begin date	Notes
Extended Supervision - Imposed and Stayed	3 Years		

Sentence	Time	Begin date	Notes
Probation, Sent Imposed	3 Years		

Condition	Time	Notes
Jail time	1 Years	Subject to huber. Not subject to good time.
Fine		\$135.60 fine/cost on each felony, apply bond to COCC Office, balance of bond not to be refunded at this time.
Restitution		30 days to determine restitution. 11/19-08-CT signs Restitution Order DOC-31 and orders COCC to pay \$2869.58 restitution out of bond being held by COCC directly to victim - 11/25/08 check cut & paid directly to victim.
Costs		Submit to DNA Sample and pay \$250.00 DNA surcharge to probation during probation.
Prohibitions		Can not be in the city limits of Amery. Can not be within one mile of the victim's residence. No contact with male under age eighteen without agent permission. Can not possess firearms forever. Can not vote until civil rights are restored.
Other		Enter into and successfully complete sex offender treatment including completing a polygraph test within the first six months of treatment. Must register as sex offender.

Count	Statute cite	Description	Severity	Offense date	Plea
2	948.095(2)	Sex Assault of Student by School Staff	Felony H	08-02-2007	Not Guilty on 12-28-2007

On 03-28-2008 there was a finding of:

Action	Court official	Notes
Charge Dismissed but Read In	GaleWyrick, Molly E	

Count	Statute cite	Description	Severity	Offense date	Plea
3	948.095(2)	Sex Assault of Student by School Staff	Felony H	09-30-2007	Not Guilty on 12-28-2007

On 03-28-2008 there was a finding of:

Action	Court official	Notes
Charge Dismissed but Read In	GaleWyrick, Molly E	

Count	Statute cite	Description	Severity	Offense date	Plea
4	948.07(1)	Child Enticement-Sexual Contact	Felony D	05-19-2007	No Contest on 03-28-2008

On 03-28-2008 there was a finding of:

Action	Court official	Notes
Guilty Due to No Contest Plea	GaleWyrick, Molly E	

On 07-10-2008 the following was ordered:

Sentence	Time	Begin date	Notes
State Prison - Imposed and Stayed	5 Years		Not eligible for Challenge Incarceration Program. Not eligible for Earned Release Program.

Sentence	Time	Begin date	Notes
Extended Supervision - Imposed and Stayed	5 Years		

Sentence	Time	Begin date	Notes
Probation, Sent Imposed	15 Years		All conditions as stated in Count 1.

Count	Statute cite	Description	Severity	Offense date	Plea
5	948.07(1)	Child Enticement- Sexual Contact	Felony D	08-02-2007	Not Guilty on 12-28-2007

On 03-28-2008 there was a finding of:

Action	Court official	Notes
Charge Dismissed but Read In	GaleWyrick, Molly E	

Defendant

Defendant name	Date of birth	Sex	Race
Baillargeon, Brenda K.	04-22-1968	Female	

Address (last updated

01-03-2022)
457 Meadow Lane,
Somerset, WI 54025

JUSTIS ID

Fingerprint ID

Attorneys

Attorney name	Entered
Williams, Owen R	11-16-2007

Also known as

Name	Type	Date of birth
Schaefer, Brenda	Now known as	04-22-1968
Schafer, Brenda Kae	Now known as	04-22-1968

Court record

Date	Event	Court official	Court reporter	Amount
02-11-2025	Receipt			\$2.50
	Additional text: 25R 001201			
07-17-2023	Notice of case status change			
01-06-2022	Order	Anderson, Jeffery L.		

Date	Event	Court official	Court reporter	Amount
	Additional text: approving Defendant's request for partial leniency of sentence (mailed to Def, Law Office of Williams & Davis)(Interoffice mail to DA's Office)(Emailed Agent)			
01-03-2022	Change of address notification for Baillargeon, Brenda K.			
	Additional text: ADDRESS INFO for Brenda K. Baillargeon Current: 457 Meadow Lane, Somerset, WI 54025 United States (Effective: 01-03-2022) Prior: 1443 260th Ave, Luck, WI 54853 United States			
01-03-2022	Letters/correspondence			
	Additional text: from Defendant requesting partial leniency of sentence			
06-16-2021	Notes			
	Additional text: Per JA, parties emailed. No objection.			
06-16-2021	Judicial/Court Official Transfer	Anderson, Jeffery L.		
	Additional text: from Br 1 to Br 2			
06-16-2021	Order	Tolan, Daniel J.		
	Additional text: Case Reassignment (from Br 1 to Br 2)			
06-07-2021	Judicial/Court Official Transfer	Tolan, Daniel J.		
06-07-2021	Letters/correspondence			
	Additional text: from Defendant requesting partial leniency of sentence			
11-15-2017	Records of prosec. are converted data. See file.			
05-22-2009	Order	GaleWyrick, Molly E	Berhow, Rebecca	
	Additional text: Order Granting Credit for Time Served			
05-22-2009	Affidavit			

Date	Event	Court official	Court reporter	Amount
	Additional text: in Support of Motion			
05-22-2009	Letters/correspondence			
	Additional text: from DA to Judge re: Affidavit in Support of Motion and Order Granting Credit for Time Served			
04-24-2009	Motion			
	Additional text: for Credit for Time Served - Notice of Motion			
04-24-2009	Letters/correspondence			
	Additional text: from Atty O Williams to COCC re: Motion for Credit for Time Served/Notice of Motion			
04-06-2009	Motion			
	Additional text: Motion for credit for time served.			
01-08-2009	Cash bond refunded			\$1,859.24
	Additional text: Remaining bond sent to Atty Williams after payment of fines/RHT			
01-08-2009	Check/Disbursement			\$1,859.24
	Additional text: copy			
12-30-2008	Other papers			
	Additional text: CT's response to Atty Williams Letter re: bond, Per CT-whatever is left after paying restitution, fines, etc may be forwarded to Atty Williams.			
12-08-2008	Letters/correspondence			
	Additional text: Dated 12/4/08 from Atty Williams to CT re: bond.			
12-08-2008	Letters/correspondence			

Date	Event	Court official	Court reporter	Amount
	Additional text: Dated 12/4/08 from Atty Williams to COCC requesting payment with attached assignment of bond.			
12-03-2008	Letters/correspondence			
12-02-2008	Cash bond applied			\$2,869.56
	Additional text: Bond used to pay restitution.			
12-02-2008	Cash bond applied			\$271.20
	Additional text: Bond applied to fines/costs			
12-02-2008	Letters/correspondence			
11-25-2008	Amended judgment of conviction			
11-25-2008	Restitution order			
	Additional text: DOC-31			
11-21-2008	Stipulation			
	Additional text: Joint Stipulation Granting Furlough from Jail			
11-05-2008	Transcript			
	Additional text: Sentencing Hearing 07-10-2008 @ 9:06 am			
09-04-2008	Motion			
	Additional text: Opposing Restitution Sought			
09-04-2008	Letters/correspondence			
	Additional text: from Atty Willaims to COCC re: Motion Opposing Restitution Sought			
09-03-2008	Notice of hearing			
	Additional text: Restitution hearing on November 24, 2008 at 11:30 am.			
08-29-2008	Receipt			\$100.00

Date	Event	Court official	Court reporter	Amount
	Additional text: 08R 010023			
08-28-2008	Motion			
	Additional text: Motion opposing restitution sought.			
08-18-2008	Memorandum			
	Additional text: from Judge to DA re: no restitution requested - bond to be refunded.			
07-14-2008	Appeal rights/info on postconviction relief			
07-10-2008	Dispositional order/judgment	GaleWyrick, Molly E		
07-10-2008	Victim impact statement			
	Additional text: Authored by Kelly Larson, mother of victim.			
07-10-2008	Notice and acknowledge of def voting ineligibility			
07-10-2008	Written explanation of determinate sentence			
07-10-2008	Sentencing hearing for Baillargeon, Brenda K.	GaleWyrick, Molly E	Berhow, Rebecca	
	Additional text: CONTINUED: CT-SENTENCE-impose and stay prison on count 1-10:20am lmh - I&S 5 yrs prison - 2 in & 3 on Ex S - ct #4 10 yr I&S with 5 & 5 - goes over bad time - Not eligible for either CIP (Boot Camp) or Earned Released - adopts in totality of PSI recommendations - 1 year in jail start at 5pm today - not limiting huber - not conditional will spend the whole year in jail, not in the city limits of Amery, can not be within one mile of the victims residence, enter into & successfully complete sex offender treatment including completing a polgraph test within the first 6 months of treatment, complete DNA test, register as a sex offender, no contact with any male under the age of eighteen without agent permission - PROBATION for 3 yrs on ct #1 & 15 yrs on ct #4 - if sent to prison the two terms will run concurrent with each other, prohibiting contact with Taylor for the next 15 years, ineligible to vote- ct has her atty take form for her to sign. ARG - \$135/60 on each of felony convictions. CT not releasing bond money at this time, not allowed to possess firearm, pay for DNA sample & submit to sample, 07CM619 is dismissed if not previously. 10:29am adjourn			

Date	Event	Court official	Court reporter	Amount
07-10-2008	Sentencing hearing for Baillargeon, Brenda K.	GaleWyrick, Molly E	Berhow, Rebecca	
	Additional text: Defendant Brenda K. Baillargeon in court with attorney Owen R Williams. Daniel P Steffen appeared for the State of Wisconsin. KM-clerk-9:06am. CT-have reviewed the PSI and factual errors? State-no. Atty-minor inconsistency. State-is in compliance w/VR, victim's mother has prepared a victim impact statement, Ms. Kelton will read. CT-victim impact statement was authored by victim's mother and read by Ms. Kelton-Victim Witness. State-goes over McCleary factor and concurs with PSI recommendation, count 1-sent to 2 years conf, 3 years ES imposed and stayed, probation 3 years, count 4-sent to 5 years conf, 6 years ES, imposed and stayed, probation 15 years to run concurrent with conditions-1 year county jail, 1st 6 month w/out huber privileges, not to be within city limits of city of Amery, not to be within 1 mile of victim's home, sex offender treatment, DNA sample, sex offender registry, no contact with victim or victim's family or any males under 18. Atty-PSI has made a valid recommendation, only challenge is the 6 month in jail with out huber is excessive and def should be allowed to contribute to the community. Def addresses the CT. State-requests 30 days for restitution. State-specifically requesting no contact with victim. Atty-disturbed by that and doesn't think the CT has jurisdiction. State-CT does have jurisdiction, and wants def to know the recommendation is no contact with victim.			
06-13-2008	Pre-sentence investigation filed			
06-12-2008	Notice of hearing			
	Additional text: Sentencing hearing on July 10, 2008 at 09:00 am.			
03-28-2008	Other papers			
	Additional text: Assignment of Bond			
03-28-2008	Order for pre-sentence investigation	GaleWyrick, Molly E	Berhow, Rebecca	
03-28-2008	Plea questionnaire, waiver of rights			
	Additional text: Filed.			
03-28-2008	Notice and acknowledge of def voting ineligibility			
03-28-2008	Pre-trial conference for Baillargeon, Brenda K.	GaleWyrick, Molly E	Berhow, Rebecca	

Date	Event	Court official	Court reporter	Amount
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Additional text:

Defendant Brenda K. Baillargeon in court with attorney Owen R Williams. Daniel P Steffen appeared for the State of Wisconsin.

KM-clerk-10:10am-State-def will plea to count 1 and 4, readin and dismiss all other counts including 07CM619 for restitution. Def S&T, 10:12am. Per def plea is N/C to both counts. PLQ filed w/CT. CT-goes over PLQ, finds waiver and plea is entered FVI&K, AFB, accept plea finds guilty and orders JOC entered into the record, convicted felon and can not possess firearms and submit and pay for DNA sample, can not vote in any election until civil rights are restored. Atty/DA-asking for PSI. CT-long form PSI ordered, author need not be present. CT-bond continues, readin and dismiss for purposes of restitution and sentencing counts 2,3 and 5 and dismiss 07CM619. Adjourn 10:20am.

12-28-2007	Notice of hearing			
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12-28-2007	Change of address notification for Baillargeon, Brenda K.			
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Additional text:

ADDRESS INFO for Brenda K. Baillargeon

Current: 1443 260th Ave, Luck, WI 54853 United States (Effective: 12-28-2007)

Prior: 1420 100th Avenue, Amery, WI 54001

12-28-2007	Arraignment for Baillargeon, Brenda K.	GaleWyrick, Molly E	Berhow, Rebecca	
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Additional text:

Defendant Brenda K. Baillargeon in court with attorney Owen R Williams. Daniel J Tolan appeared for the State of Wisconsin. - BAM clerk - 10:50 am - CASES: 07CF317 & 07CM619 - Atty Williams waive further reading - Ct 1 Def is Mute to Ct 1 - Ct enters plea of NG to Ct 1 - Ct 2 - Def is Mute to Ct 2 - Ct enters plea of NG to Ct 2 - Ct 3 - Def is Mute to Ct 3 - Ct enters plea of NG to Ct 3 - Ct 4 - Def is Mute to Ct 4 - Ct enters plea of NG to Ct 4 - Ct 5 - Def is Mute to Ct 5 - Ct enters plea of NG to Ct 5 - Bond continues - Atty Williams ask ct to set date after meeting w/DA's Office 2/1/08 @ 2:15 pm. Ct sets for Pre-Trial Conference - 07CM619 will track with this file. Adj 10:56 pm Pre-trial conference scheduled for 03-28-2008 at 08:30 am.

12-11-2007	Demand for discovery			
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Additional text:

state

12-03-2007	Letters/correspondence			
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11-29-2007	Other papers			
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Additional text:

Plea of not guilty and defense motions.

Date	Event	Court official	Court reporter	Amount
11-29-2007	Information Additional text: Filed.			
11-26-2007	Notes			
11-26-2007	Subpoena			
11-26-2007	Fingerprint card received			
11-21-2007	Notice of hearing			
11-21-2007	Waiver of preliminary hearing	GaleWyrick, Molly E	Berhow, Rebecca	
11-21-2007	Receipt Additional text: 07R 013337			
11-21-2007	Receipt Additional text: 07R 013337			\$5,000.00
11-21-2007	Receipt Additional text: 07R 013333			
11-21-2007	Receipt Additional text: 07R 013333			\$3,000.00
11-21-2007	Notice of Appearance Additional text: and motion to dismiss.			
11-21-2007	Plea questionnaire, waiver of rights			
11-21-2007	Preliminary hearing for Baillargeon, Brenda K. Additional text: Defendant Brenda K. Baillargeon in court with attorney Owen R Williams. appeared for the State of Wisconsin. - BAM clerk - 02:03 pm - WR to Prelim Hearing submitted. Ct finds WR2PH is FVI&K and orders Def bound over for trial. Bond continues - Adj 2:07 pm Arraignment scheduled for 12-28-2007 at 10:30 am.	GaleWyrick, Molly E	Berhow, Rebecca	
11-20-2007	Amended complaint			
11-20-2007	Judicial assignment order			

Date	Event	Court official	Court reporter	Amount
11-20-2007	Request for substitution Additional text: of Judge			
11-20-2007	Judicial assignment order	GaleWyrick, Molly E	Berhow, Rebecca	
11-20-2007	Amended complaint Additional text: Filed.			
11-20-2007	Order assigning judge/judicial assignment order	GaleWyrick, Molly E	Berhow, Rebecca	
11-19-2007	Other papers			
11-19-2007	Other papers Additional text: email			
11-19-2007	Notice of hearing			
11-19-2007	Request for substitution Additional text: Substitution of Judge-fax by Atty.			
11-19-2007	Application for specific judicial assignment	Rasmussen, Robert	Stone, Bruce	
11-16-2007	Notice of hearing			
11-16-2007	Motion Additional text: To amend bond.			
11-16-2007	Cash bond amended down for Baillargeon, Brenda K.			\$5,000.00
11-16-2007	Cash bond set for Baillargeon, Brenda K. Additional text: Not to have contact with T.J.F. DOB 5/19/91, Kelly M. Laqrson, or 1536 85th Avenue, Amery, WI 54001. Not to be at or near the following premises: County Hearth, 114 Keller Avenue, Amery, WI 54001 or with any employees at County Hearth.			\$5,000.00
11-16-2007	Initial appearance for Baillargeon, Brenda K.	Rasmussen, Robert	Merkel, Mariann	

Date	Event	Court official	Court reporter	Amount
	Additional text: Defendant Brenda K. Baillargeon in court with attorney Owen R Williams. Defendant Brenda K. Baillargeon in custody. Daniel P Steffen appeared for the State of Wisconsin. KM-clerk-8:37am-CT-continuation of IA, sets PH. Atty-motion to amend terms, request could rais \$1000.00. State-request high cash bond and another condition of bond. CT-re 10% rule. Atty-doesn't know statute-going on past practice. State-doesn't think there is a statute. CT-reducing bond to \$5000.00 cash, informs to people in court re if cash bond is posted, need to make sure no contact provisions are met and also informs the people of the money that is posted may go to fines. Atty-requests to inform re surrender to the sheriff to the release of bond. State-no contact with County Hearth 114 North Keller Ave, Amery, WI. Atty-no objection to the expansion. CT-no contact by phone or in person with COunty Hearth, 114 North Keller Ave, Amery, WI this also includes 07CM619 file. Preliminary hearing scheduled for 11-21-2007 at 02:30 pm.			
11-15-2007	Notice of hearing			
11-15-2007	Cash bond set for Baillargeon, Brenda K.	Rasmussen, Robert	Stone, Bruce	\$10,000.00
	Additional text: Not to have contact with T.J.F DOB of 5/19/91, Kelly Larson, or 1536 85th Avenue, Cty Rd "F", Amery, WI 54001. Initial appearance scheduled for 11-16-2007 at 08:30 am.			
11-15-2007	Initial appearance for Baillargeon, Brenda K.	Rasmussen, Robert	Stone, Bruce	
	Additional text: Defendant Brenda K. Baillargeon in court, in custody. Daniel P Steffen appeared for the State of Wisconsin. KM-clerk-1:05pm-Per def Atty Williams will be representing. CT-calls Atty Williams office and secretary gets him on speaker phone, on his way to Hudson, tied up all afternoon. CT-informs him to be here tomorrow at 10am. CT-calls back and talks with Sarah, secretary to see if Atty Williams can be tomorrow, confirms. State-request to set bond today. Atty-wants it to be set in his absence. CT-covers 07CM619 file also. CT-sees problem with 07CM619-victim listed. State files copy of injuction with court. CT-attaches copy of injuction with file. State requests cash bond of \$10,000.00. CT-sets bond on each files. Adjourned initial appearance scheduled for 11-16-2007 at 10:00 am.			
11-15-2007	Responsible court official changed	Rasmussen, Robert		
11-15-2007	Complaint filed	GaleWyrick, Molly E		
11-14-2007	Other papers			

Date	Event	Court official	Court reporter	Amount
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Additional text:

Report in support of probable cause for arrest. Request for criminal complaint

11-14-2007 Report

Additional text:

Report in support of probable cause for arrest. Request for criminal complaint

Total receivables

Payment plan	Balance due	Payment due	Due date
Payment plan	\$0.00	\$0.00	